

26STCP00184 26STCP00184

County: los-angeles

Division: Civil Law and Motion

Department: 507

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Case Number: 26STCP00184 Hearing Date: July 17, 2026 Dept: 507

Tentative

Ruling

Judge Nicholas

F. Daum, Department 47

HEARING

DATE: July 17, 2026 TRIAL

DATE: N/A

CASE: Sameday Technologies, LLC v. Signal

Diagnostics, LLC, et al.

CASE

NO.: 26STCP00184

MOTION FOR ATTORNEYS' FEES AND

COSTS

MOVING

PARTY: Petitioner Sameday Technologies, LLC

RESPONDING

PARTY(S): No Opposition

Filed

TENTATIVE RULING:

Sameday's
unopposed motion for Attorneys Fees and Costs is GRANTED in part.

The
Court awards Sameday \$172,038.85
in attorneys' fees and \$5,291.25 in costs.

Fees
and costs are awarded against respondents Signal Diagnostics LLC and Alex Meshkin,
jointly and severally.

Fees
and costs are payable by Signal Diagnostics LLC and/or Alex Meshkin, jointly
and severally, to Sameday within 30 days of today.

Moving Party to give notice.

DISCUSSION

On
April 21, 2026, this Court confirmed an arbitration award in Sameday's
favor. Sameday now petitions the Court
for attorneys' fees and costs incurred in connection with their petition to
confirm the award. Critically, this
motion only addresses attorneys' fees and costs needed to confirm the award—Sameday was already awarded its attorneys'
fees
and costs from the arbitration itself.

Sameday
asks for a total of \$281,721.50 in fees.
It seeks these fees based on a total of 285.85 hours of work, at
attorney rates ranging from \$1,282.50 to \$732.50 per hour for Sameday's attorneys
from the Sheppard, Mullin firm. (For
some tasks, Sameday also seeks to recover for work done at \$500 per hour by Sameday's
in-house counsel.)

The
motion is unopposed. Accordingly, the Court
has no evidence or argument that would allow the Court to apply a critical lens
to Sameday's request for fees and costs.

Despite

the lack of an opposition, the Court has examined the moving papers. The Court has done so to examine (a) whether there is an entitlement to fees and (b) whether the amount of fees requested is an appropriate lodestar amount, defined as a reasonable amount of time worked multiplied by reasonable attorney rates.

(See generally *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131-32 [explaining basic lodestar principles].)

Sameday's

entitlement to fees appears clear, as a matter of contract and under Civil Code section 1717. Thus, fees must be awarded.

The

rates charged by Sameday's attorneys, while very high in some contexts, appear well within market range for attorneys of this caliber performing work of this kind. The Court does not reduce counsel's rates.

The

Court simply cannot countenance, however, that it was reasonable for Sameday to have attorneys—particularly of this caliber—spend a total of 285.85 hours to obtain confirmation of an already-obtained arbitration award.

True,

the Respondents here put up a fight. Equally true, that fight was complicated by some unusual tactics by Respondents—as noted in a prior ruling of the Court, Respondents (apparently using AI) cited to aspects of the record that did not exist.

Sameday did indeed have to litigate the confirmation of the arbitration award. Sameday is entitled to compensation for doing so.

But

even with that taken into account, it was not reasonable for Sameday to spend all of the time it did. The Court accepts that it reasonably took 44.65 hours to draft and file the petition to confirm the arbitration award (Mot., p. 14), although this number is somewhat high for such a task. The Court is also willing to accept 25.5 hours in pre-filing activity (Mot., p. 13), although again that

seems high. But it cannot reasonably have taken a separate 90.65 hours to reasonably reply to Respondents' opposition to that petition and oppose their motion to vacate, after the underlying petition was already drafted. Nor can it possibly have been reasonable for Sameday to spend an additional 125.05 hours, after its briefing was complete, to provide "supplemental prejudgment interest briefing," attend the hearing itself, and draft the instant motion for attorneys' fees. Much of that time was, in the Court's view, unreasonable. That is particularly so since the work was done by attorneys as skilled as Sameday's counsel.

Accordingly, the Court reduces the hours spent as follows. It reduces the time spent in opposing and replying to Respondents' opposition by 40%, or to 54.39 hours. It reduces the 125.05 hours spent on postbriefing tasks like the prejudgment interest calculation, fee motion, and hearing attendance by 60%, or to 50.02 hours. Combining those hours as recalculated by the Court, the Court calculates the total reasonable number of hours spent as 174.56.

Based on that total number of reasonable hours and the total billings charged by Sameday's attorneys, the Court calculates a total reasonable fee award as being \$172,038.85. The Court awards that amount in attorneys' fees.

The costs requested, in the amount of \$5,291.25, all appear to be properly recoverable.

Finally, based upon Sameday's submission, it appears that this award should run against both Respondents—that is, against both Signal Diagnostics LLC and Alex Meshkin.

CONCLUSION:

Sameday's unopposed motion for Attorneys Fees and Costs is GRANTED in part.

The Court awards Sameday \$172,038.85 in attorneys' fees and \$5,291.25 in costs.

Fees

and costs are awarded against respondents Signal Diagnostics LLC and Alex Meshkin, jointly and severally.

Fees

and costs are payable by Signal Diagnostics LLC and/or Alex Meshkin, jointly and severally, to Sameday within 30 days of today.

Moving Party to give notice.

IT IS

SO ORDERED.

Dated: July 17, 2026 _____

Nicholas

F. Daum

Judge

of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.